

INTA Practice Guides Report

Trademark Cancellations Guide

Bolivia

SINGLE JURISDICTION REPORT

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks (It is important to clarify that in Bolivia and the Andean Community of Nations (CAN, which includes Bolivia, Colombia, Ecuador, and Peru), the action referred to as “trademark cancellation” specifically pertains to an action filed against a registered trademark due to lack of use. However, in other jurisdictions, this action may also refer to “trademark nullity.” Therefore, these responses will be aimed at addressing the aspects corresponding to trademark nullity actions and cancellation due to lack of use.); international marks.
- “Cancellation” is not defined by legislation. The cancellation action, while provided for under Article 165 of Decision 486 of the Andean Community of Nations (CAN), is not explicitly defined by this regulation. However, the Andean Tribunal has defined the Cancellation Action as follows: “The cancellation for non-use of a trademark is a concept that arises when trademarks exist but are not being used, thereby becoming an unnecessary barrier for third parties who actually intend to use the trademark.” In addition, Article 172 of Decision 486 of the Andean Community of Nations (CAN) only distinguishes between “absolute nullity” and “relative nullity.” Nevertheless, Andean jurisprudence has defined these two actions as follows: Absolute Nullity. This concept is aimed at protecting the legal order rather than the interests of a specific third party, as it can be filed by any person and at any time. Absolute nullity is applicable when the registration was granted in contravention of any of the grounds established in the first paragraph of Article 134 or Article 135 of Decision 486. Relative Nullity. This action is intended to protect the interests of a specific third party even though it may be filed by any person. Relative nullity applies when the registration was granted in contravention of any of the grounds established in Article 136 of Decision 486 or if it was obtained in bad faith. In such cases, the statute of limitations for filing the action is five years, counted from the date the contested registration was granted.
- Cancellation actions cannot be filed online. While the filing of nullity claims and cancellation actions for non-use requires the completion of specific forms, it is important to note that these claims must be physically submitted to the National Intellectual Property Service (SENAPI). This means that the form, along with all the necessary supporting documentation, must be filed in physical format at the offices of the competent authority for proper processing.

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the mark is functional; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention (that reproduce or imitate, without the authorization of the competent authorities, whether as trademarks or as elements of

said trademarks, the coats of arms, flags, emblems, signs, and official marks of control and guarantee of the States and any imitation from a heraldic perspective, as well as the coats of arms, flags, and other emblems, initials, or names of any international organization); the mark includes a badge or emblem of particular public interest; other absolute grounds, i.e., grounds that relate to the inherent registrability of a mark: the mark consists of a color considered in isolation, without being delimited by a specific shape; the mark reproduces, imitates, or contains a protected designation of origin for the same products or for different products when its use could cause a risk of confusion or association with the designation, or imply an unfair advantage of its notoriety; the mark contains a protected designation of origin for wines and spirits; the mark reproduces or imitates conformity marks with technical standards, unless its registration is requested by the competent national body in standards and quality in the member states; the mark reproduces, imitates, or includes the name of a plant variety protected in a member state or abroad if the sign is intended for products or services related to that variety or if its use could cause confusion or association with the variety.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; there are earlier use-based rights in an unregistered mark; the application for or registration of the mark was made in bad faith; the mark is covered by a copyright; the mark is a company name; the mark is notorious or well known (Article 6bis of the Paris Convention) (The mark constitutes a reproduction, imitation, translation, transliteration, or transcription, in whole or in part, of a well-known distinctive sign owned by a third party, regardless of the products or services to which the sign is applied, when its use could potentially cause a risk of confusion or association with that third party or its products or services; an unfair advantage of the prestige of the sign; or dilution of its distinctive character or its commercial or advertising value.); the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention) (are identical or similar to a distinctive sign owned by a third party, provided that, under the given circumstances, its use could create a risk of confusion or association, when the applicant is or has been a representative, distributor, or a person expressly authorized by the owner of the protected sign in the member state or abroad); the mark is a trade or business name; other relative grounds, i.e., grounds that are based on another party's proprietary rights: the mark is identical or similar to a trade slogan that has been applied for or registered, provided that, under the given circumstances, its use could generate a risk of confusion or association; the mark consists of a sign that affects the identity or prestige of legal entities, whether for-profit or non-profit, or natural persons, especially when it involves the name, surname, signature, title, hypocoristic, pseudonym, image, portrait, or caricature of a person different from the applicant, or is identified by the relevant sector of the public as a person different from the applicant, unless the consent of that person is proven or, if deceased, the consent of that person's declared heirs; the mark consists of the name of indigenous, Afro-American, or local communities, or the names, words, letters, characters, or signs used to distinguish its products, services, or processing methods, or that constitute expressions of its culture or practice, unless the application is filed by the community itself or with its express consent.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- In addition to the absolute or relative grounds listed above and/or the non-use grounds listed below, the following grounds may also be raised in cancellation proceedings: For relative nullity grounds, it includes when a trademark registration was made in bad faith to perpetrate or consolidate acts of unfair competition.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings. The lack of use of a trademark can only be challenged in a Cancellation for Non-Use process, in accordance with Article 165 and subsequent articles of Decision 486 of the Andean Community of Nations (CAN). However, it is essential to emphasize that this argument is not applicable in nullity proceedings, whether based on absolute nullity grounds (such as lack of distinctiveness or the inclusion of prohibited elements) or relative nullity grounds (such as the existence of a prior right). Therefore, in the context of a nullity action, the lack of use cannot be invoked as a reason to invalidate a registered trademark. Instead, the claim must be substantiated and based on the specific grounds that regulate such nullity actions.
- In relation to cancellation for non-use, "use" is defined as: A trademark will be considered to be in use when the goods or services it distinguishes have been placed on the market or are available under that mark, in the quantity and manner that is normally expected, taking into account the nature of the goods or services and the marketing conditions in the relevant market. Likewise, a trademark will be deemed to be in use when it exclusively distinguishes products that are exported from any of the member countries.
- The definition of "use" provided above is derived both from statute, regulation or administrative rule and from case law: The definition is provided in Article 166 of Decision 486 of the Andean Community and in several prejudicial interpretations issued by the Andean Tribunal, including within process 27-IP-2022.
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor. Use of a trademark by its owner, a licensee, or another authorized person constitutes valid use if it occurs during the three years immediately preceding the date on which the cancellation action is initiated; the use must be in at least one of the member countries of the Andean Community (Bolivia, Colombia, Ecuador, and Peru).
- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: The three consecutive years prior to the date on which the cancellation action is initiated are crucial for demonstrating the use of the trademark. This means that the trademark must have been effectively used in commerce during this period, which includes the sale of products or the provision of services under the trademark in at least one of the member countries of the Andean Community. If the trademark has not been used during this time, it may be subject to cancellation for lack of use.
- There are no consequences to the interruption of use. There are guidelines for marketing, even in the case of intermittent or seasonal sales, as one cannot disregard the vicissitudes, circumstances, and particularities that commercial phenomena present in reality. Inflationary processes, the introduction of new taxes, and fortuitous or force majeure events can alter supply and demand conditions. Therefore, the authority must prudently analyze on a case-by-case basis whether the guidelines are justified. It is unacceptable to require continuous use, even if it affects the profitability of the business. Indeed, it would be absurd for the entrepreneur to be forced to lose

money by offering a product in an adverse scenario just to prove the use of the trademark. For this reason, it is necessary for the industrial property authority to adequately weigh the existing factors and, based on a logical, rational assessment and sound judgment, analyze on a case-by-case basis whether the guidelines are justified or not.

II. Grounds — E. Multiple Grounds

- An application for cancellation may not be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds). A cancellation action can only be based on the lack of use of the trademark. Relative or absolute grounds are used for nullities.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks. The reason for the cancellation of a trademark, both national and foreign, is the lack of use in the market, in the quantity and manner that normally corresponds, taking into account the nature of the products or services and the modalities under which they are marketed in the market.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings. Within a cancellation procedure, no additional causes other than the lack of use of the trademark are admitted.

III. Forum — A. Forum

- The forum for cancellation proceedings is the same regardless of the grounds on which the proceedings are brought. Cancellation proceedings on all grounds may be brought before the following administrative body: The reason for filing a cancellation action is the lack of use; there are no other causes or reasons that enable this action. The administrative body that resolves this action is the National Intellectual Property Service (SENAPI).
- The administrative body/bodies listed above is/are not independent of the trademark registry. The SENAPI, which resolves the cancellation action, is not independent from the trademark registry.

IV. Standing — A. On Basis of Grounds

- The following parties have legal standing to apply for cancellation, regardless of the grounds for cancellation: any interested person. Legal interest is required. Article 165 of Decision 486 of the CAN establishes that the competent national office, in the particular case of Bolivia, SENAPI, will cancel the registration of a trademark at the request of an interested party when, without justified reason, the trademark has not been used in at least one of the member countries.
- For cancellations based on grounds other than absolute, relative or non-use grounds, the following parties have standing: any interested person. Legal interest is required. Regarding the standing to initiate the cancellation process, according to Article 165 of Decision 486 of the CAN, the procedure is initiated at the request of a party; that is, it cannot be initiated ex officio by the Competent National Office. Any interested person may initiate the procedure. This means that the applicant must demonstrate an interest in the cancellation of the respective trademark, which

translates into the intention to register an identical or similar sign to the unused one.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons. The concept of "person" for initiating a cancellation process includes both natural persons and legal entities. This means that any individual or legally established entity can file a cancellation action, as long as it has a legitimate interest in doing so.
- For purposes of standing, an "interested person" is defined as: someone who believes he is being damaged by the registration; A person whose trademark cannot be registered due to the existence of a prior registration that is not being used in the market, commonly known as a "parasitic registration," can resort to the action of cancellation for lack of use.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation. The criteria for standing to file cancellation actions for non-use or nullity of trademarks, whether relative or absolute, in Bolivia and the Andean Community of Nations (CAN), are the same for both nationals and foreigners.

IV. Standing — D. Multiple Applicants

- More than one applicant may never apply jointly for cancellation. The cancellation action can be filed by multiple interested parties independently and not jointly. This means that each interested party has the right to request the cancellation of a trademark that it believes is not being used and that affects its interests, without the need to coordinate with other applicants. Regardless, if there are several or multiple actions, the authority will accumulate all the actions and resolve them in a single resolution.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may not be sought by a defendant. It is important to clarify that, in Bolivia, the infringement action is an administrative procedure that takes place before the same SENAPI. In this sense, within this action, the defendant does not have the authority to request the cancellation of the trademark.

V. Representation — A. Qualifications

- The applicant is required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings in the following circumstances: The applicant can appoint a legal representative or lawyer to initiate and process a cancellation action in the following cases: If the applicant is a foreigner and does not reside within the jurisdiction of the SENAPI Office; If the applicant is a national and decides to delegate this authority to a representative for the processing. In both cases, it is essential to include the power of attorney of the legal representative in the first document submitted to SENAPI. This power of attorney must be clear and specify the powers being delegated to ensure that the representative acts on behalf of the applicant in a valid and legal manner.
- The representative must be domestic, i.e., with an office in the jurisdiction. The

designated representative for processing the cancellation action must be a national and have an office within the jurisdiction of SENAPI. This ensures that the representative is adequately located to meet legal requirements and facilitate communication during the administrative process.

- Additional professional qualifications required of a representative in cancellation proceedings are as follows: The qualities of legal representatives for initiating and processing a cancellation action are essential to ensure proper management of the procedure. These qualities include: Knowledge of the subject and specific administrative procedure. The representative must have a solid understanding of intellectual property laws, particularly regarding cancellation actions. Familiarity with regulations and case law. It is crucial for the representative to stay updated on changes in legislation and relevant court decisions that may impact the case, ensuring effective advocacy for the applicant's interests. These qualities enable the process to be carried out more efficiently and with greater chance of success.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney must be provided to a representative by an applicant in cancellation proceedings. In a cancellation procedure, it is essential to provide proof of legal capacity and representation through a duly granted power of attorney. This document must be submitted along with the first filing made to SENAPI. The inclusion of the power of attorney is crucial to validate the actions of the legal representative on behalf of the applicant, ensuring that all actions and decisions taken during the process are legitimate and authorized. Law 2341 of Administrative Procedure in Bolivia establishes in Article 13 that any persons making requests to the Public Administration may act on their own or through a duly accredited representative or attorney. Representatives must present the power of attorney during their first action.
- To validate the power of attorney, the following notarization/legalization requirements must be met in cancellation proceedings: The power of attorney presented in a cancellation procedure must comply with certain formalities to be valid in Bolivia. This means that the power must be notarized and legalized by apostille in the grantor's country of origin. According to Article 1294 of the Bolivian Civil Code, any document issued abroad that does not meet these formalities will not have legal validity in Bolivian territory.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may be commenced before a mark is registered only if based on: non-use grounds. The only reason for cancellation in Bolivia is lack of use.

VI. Commencement — B. Deadline

- There is never a deadline for bringing cancellation proceedings, regardless of the grounds for cancellation. There is no time limit for filing a cancellation action; however, the opportunity to initiate the cancellation process for non-use of the trademark arises after three years from the date of registration of the trademark.

VI. Commencement — C. Statute of Limitations

- There is no statute of limitations or acquiescence provision that would prevent cancellation, regardless of the grounds for cancellation. There is no legal provision that establishes a statute of limitations or acquiescence that prevents the cancellation

action of a trademark, regardless of the causes that motivate it. This means that any interested party can file a cancellation action at any time, as long as it can demonstrate the necessary grounds to justify such a request, as long as the trademark has been registered for three years.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation. The partial cancellation of a trademark registration proceeds when the lack of use of a trademark affects only one or some of the products or services for which the trademark is registered. In this case, a reduction or limitation of the list of products or services included in the trademark registration will be ordered, eliminating those for which the trademark has not been used. The identity or similarity of the products or services will be taken into account.
- For single-class registrations, it is possible to apply for cancellation of some of the goods within the single class. Multi-class registrations are not permitted in this jurisdiction. It is possible to request the partial cancellation of some of the products included in that class. This means that if the owner has not demonstrated use of certain products, a cancellation procedure can be initiated only regarding those specific products, while the registration will remain valid for those products within the same class that are in use. This approach allows the owner to retain rights over the products it actually uses while removing protection for those that are not used.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: The approximate duration of a cancellation procedure for non-use in Bolivia is 8 to 10 months. However, this period may vary due to factors such as the SENAPI procedural workload and other administrative aspects that could influence the speed of the process.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: Once all procedural acts of the cancellation process have been completed, such as the submission of responses, hearings, and evidence production, the competent authority must issue a resolution within four months. This time frame is indicative and may be extended depending on the complexity of the case and the workload of the SENAPI.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees (These compensate for the time and experience of the professional, covering the preparation and submission of documents, representation in administrative acts, assistance in hearings, and any other necessary management for the development of the process.); statutory or regulatory fees (These are the payments required by the SENAPI to initiate, process, and resolve the procedure. Each procedure has a duly established official fee.); administrative costs relating to power of attorney (These are the costs associated with the legalization and authentication of documents before local notaries, such as powers of attorney, sworn declarations, or any other documentation that must be formalized to have validity in the procedure.).
- No official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation. The internal procedural regulations of the SENAPI state that the fees paid will, under no circumstances, be reimbursed.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- The following documents must be notarized in cancellation proceedings, regardless of the grounds for cancellation: For cancellation procedures and any other administrative actions before the SENAPI in Bolivia, the documents that prove the use of a trademark (such as invoices, contracts, advertising, etc.) and the power of attorney must comply with the following formalities: Notarization. The power of attorney and any document used as evidence must be notarized in the country of origin to give them legal validity. The following documents must be legalized in cancellation proceedings, regardless of the grounds for cancellation: For cancellation procedures and any other administrative actions before the SENAPI in Bolivia, the documents that prove the use of a trademark (such as invoices, contracts, advertising, etc.) and the power of attorney must comply with the following formalities: Apostille Legalization. These documents must be legalized through apostille (or consularization if the country is not a party to the Hague Convention) to be valid in Bolivia, in accordance with Article 1294 of the Bolivian Civil Code and the requirements of the SENAPI.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings are the same, regardless of the grounds for cancellation and are as follows: The power of attorney is the fundamental document that must be presented at the beginning of the cancellation procedure due to lack of use.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories"). In Bolivia's administrative system, there is no provision for responses to interrogatories under oath. However, Bolivia's legislation allows for testimonial evidence, in which witnesses, under oath and in a hearing, are obligated to truthfully answer the questions posed by the authority regarding facts of which they have direct knowledge and that are related to the subject of the controversy.

XI. Discovery — B. Document Requests

- No party may request that any other party produce documents in response to written document requests ("Document Requests"). Neither party may require the other to produce documents in response to written requests ("Document Requests"). Only the authority has the power to request and, where appropriate, compel the parties to produce documents that it considers necessary for the proceedings. This power is exercised in order to reach the material truth of the facts that constitute the subject matter of the dispute, thus ensuring that the resolution is based on complete evidence verified by the competent authority.

XI. Discovery — C. Depositions

- Any party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions"). Bolivia's legislation allows for testimonial evidence. Each party has the possibility and option to propose witnesses who, under oath and in a hearing, are obliged to truthfully answer the questions that the authority asks them about the facts of which they have direct knowledge, and which are related to the object of the controversy.
- The rules concerning the timing, location, subject and permitted scope of inquiry of a Deposition are as follows: The general rules regarding the timing, number, and scope of interrogations should be considered from the beginning of the process. Testimonial

evidence must be offered at the time of filing or responding to the complaint. However, it is possible to present additional testimonial evidence if it pertains to recently obtained facts, provided that the late presentation of such elements is adequately justified. When offering testimonial evidence, it is necessary to attach a list of witnesses with the relevant information, including their full names, addresses, professions, usual occupations, and identification card numbers. If it is not possible to obtain some of this information, it will suffice to provide what is necessary to identify the witness, ensuring the witness can be located and identified correctly. The number of witnesses allowed for each process should not exceed five, unless the administrative authority, for duly justified reasons, authorizes a greater number. This limitation aims to avoid the saturation of testimonies and expedite the development of the procedure without compromising the quality and relevance of the information provided. Regarding the procedure, the testimony of witnesses will be conducted in a hearing, and each witness will be interrogated separately under oath or promise to tell the truth. The administrative authority will initiate the interrogation to establish the identity of the witness and the existence of any potential grounds for disqualification. Then, the witness will be invited to present the facts he or she has direct knowledge of, specifying the circumstances of time, manner, and place. Once this initial stage is completed, the parties may freely interrogate the witness through the witness's attorneys, under the supervision of the authority, which may formulate new questions at any time, reject irrelevant or offensive questions, and terminate the interrogation if deemed necessary. Each question directed at the witness must be clear and specific, refer to a single fact, and not contain defamatory or offensive elements. Furthermore, the witness may not seek legal advice to respond or read notes or outlines unless authorized by the authority due to the nature of the question. In these cases, a record will be made of the responses given in this manner to ensure the transparency and legality of the process. There are certain limitations for witnesses, as they are not obligated to answer questions that may compromise their own interests or those of their relatives up to the fourth degree of consanguinity, which could jeopardize their honor, or which may expose them to criminal liability. Likewise, they will not be required to answer questions that violate a professional, military, scientific, artistic, or industrial secrecy they are bound to keep, unless there is informed consent from the affected person. Finally, the cross-examination of witnesses with each other or with the parties may be ordered to clarify contradictions or verify the truthfulness of the statements, as long as it is relevant to clarifying the facts in dispute. This measure may be ordered by the administrative authority on its own initiative or at the request of one of the parties.

- If the requested party fails to provide a requested witness for a Deposition or fails to answer certain questions during a Deposition, there is no procedure by which the requesting party can compel compliance. In order to demonstrate relevant facts for each party in a proceeding, each has the authority to propose witnesses who can testify about situations related to the subject of the controversy. However, there is no obligation to present witnesses, as their offering is voluntary and depends on each party's strategy. In the event that witnesses are proposed, it is important to consider certain limitations. Witnesses are not obligated to answer questions that may compromise their own interests or those of their relatives up to the fourth degree of consanguinity, that may put their honor at risk, or that could expose them to criminal actions. Similarly, they are not required to answer if the questions involve the breach of a professional, military, scientific, artistic, or industrial secret that they must keep, unless there is express and informed consent from the affected person.
- There are no consequences if the requested party fails to provide a requested

witness for a Deposition or fails to answer certain questions during a Deposition. It is not an obligation to present witnesses since their offering is voluntary and depends on the strategy of each party.

- There are no grounds on which the requested party may justify its refusal to appear for or to answer questions in a Deposition. It is important to consider that there are certain limitations for witnesses since they are not obliged to answer questions that may compromise their own interests or those of their relatives up to the fourth degree of consanguinity, that put their honor at risk, or that expose them to criminal prosecution. Likewise, they will not be obliged to answer when the questions violate a professional, military, scientific, artistic, or industrial secret that they must keep, unless there is informed consent from the person affected.
- Answers provided during Depositions may be used as evidence in the action. At the time of issuing the definitive Administrative Resolution, the administrative authority, according to the rules of sound judgment, will assess the circumstances and reasons that corroborate or diminish the weight of the witnesses' statements.

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: In cancellation proceedings for non-use, the burden of proof falls exclusively on the trademark owner, who must demonstrate the effective use of the trademark within the time limits established by the applicable regulations. On the other hand, in relative or absolute nullity actions, the burden of proof is distributed between both parties. Each party has the responsibility to provide evidence to support its arguments and positions, according to what it considers pertinent to support its claims and guarantee a comprehensive analysis of the controversy.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are mandatory. The arguments of the claim or the response must always be formulated in a written document, which must be physically submitted to the National Competent Office (SENAPI). This formality is essential to ensure that the arguments are duly recorded and considered in the corresponding administrative process, thereby ensuring compliance with the established procedures and the right to defense for the parties involved.
- The deadline for the applicant to submit written arguments is determined by statute, rule or regulation and is: The deadline for the plaintiff to present its arguments is established both in the Community Law (Decision 486 of the Andean Community of Nations) and in the Internal Procedural Regulations for Industrial Property of SENAPI. The deadline for the respondent to submit written arguments is determined by statute, rule or regulation and is: Likewise, the deadline for the defendant to formulate its arguments in response is also provided for in the Community Law (Decision 486 of the Andean Community of Nations) and in the Internal Procedural Regulations for Industrial Property of SENAPI.

XIII. Written Arguments — B. Extensions to File

- Extensions of time are not available to the applicant to file written arguments.
- Extensions of time are not available to the respondent to file written arguments.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are not permitted in cancellation proceedings. In Bolivia, within the context of administrative procedures, oral hearings are not the general rule since most procedural acts are carried out in writing. However, depending on the particularities of each case, administrative inspections or expert reports may be carried out on objects and places related to the facts in question, especially when more direct interaction between the parties is required. SENAPI's Internal Industrial Property Procedure Regulations establish the conditions under which these hearings can be carried out and details the procedures to be followed in each case.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: In an action for absolute nullity, to establish the grounds justifying this action, the trademark must fall under the grounds for non-registerability provided in Articles 134 and 135 of Decision 486 of the Andean Community of Nations. To demonstrate this, the plaintiff has the option to present documentary evidence, as well as to request administrative inspections, expert reports, or witness testimonies to support its argument. This evidence is essential to substantiate the request for nullity and allow the competent authority to adequately assess the situation.
- Evidence must be submitted to: SENAPI is the administrative authority that has the power to resolve such matters.
- Evidence must be submitted by the following deadline: The evidence must be proposed and presented along with the nullity request, in accordance with the established regulations. The submission of evidence at a later time is only admissible if it is of recent acquisition and was not available at the time the request was filed. This exception ensures that any new, relevant elements can be considered in the process, as long as their subsequent appearance is justified.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: In a relative nullity action, to establish the reasons that justify this action, the trademark must be non-registrable as provided for in Article 136 of Decision 486 of the Andean Community of Nations or when this has been done in bad faith. To demonstrate this, the plaintiff has the option of presenting documentary evidence, as well as requesting administrative inspections, expert reports, or testimony that supports its argument. This evidence is essential to support the request for nullity and allow the competent authority to adequately evaluate the situation.
- Evidence must be submitted to: SENAPI is the administrative authority that has the power to resolve such matters.
- Evidence must be submitted by the following deadline: The evidence must be proposed and presented along with the nullity request, in accordance with the established regulations. The submission of evidence at a later time is only admissible if it is of recent acquisition and was not available at the time the request was filed. This exception ensures that any new relevant elements can be considered in the process, as long as their subsequent appearance is justified.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: Although in cancellation proceedings for non-use the burden of proof falls exclusively on the trademark owner, the applicant may attach to its application evidence demonstrating the lack of use, such as market research or any other

element that shows the absence of commercial exploitation of the trademark. This additional evidence can strengthen the applicant's application and provide the authority with preliminary elements to assess the situation before requiring the owner's justification.

- Evidence must be submitted to: SENAPI is the administrative authority that has the power to resolve such matters.
- Evidence must be submitted by the following deadline: In cancellation proceedings for lack of use, the burden of proof falls solely on the trademark owner. It is also possible for the plaintiff or applicant to present evidence that demonstrates the lack of use of the trademark, such as "market use investigations."

XV. Evidence — D. To Establish Other Grounds

- The following types of evidence may be submitted to establish grounds other than absolute, relative or non-use grounds: There are no grounds other than absolute, relative, or lack of use provided for in the law. Therefore, any action or request filed must be based on these established grounds found in Decision 486 of the Andean Community of Nations (CAN). Thus, only evidence that supports the grounds provided in the current legislation can be submitted, ensuring that the actions are framed within legal limits and aim to demonstrate the existence of reasons for nullity or cancellation due to lack of use in accordance with the law.
- Evidence must be submitted to: There are no grounds other than those already addressed, so the submission of any additional evidence before SENAPI or the granting of a specific time frame for it is not appropriate.
- Evidence must be submitted by the following deadline: There are no grounds other than those already addressed, so the submission of any additional evidence before SENAPI or the granting of a specific time frame for it is not appropriate.

XV. Evidence — E. Applicant's Proof of Use

- The applicant is not required to submit proof of use of the mark on which the cancellation is based. In actions for relative nullity, absolute nullity, or cancellation for non-use, the applicant is not obliged to present evidence of the use of the mark on which its claim is based.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time for the applicant's submission of evidence are not possible. The applicant has no extensions for the submission of evidence, except for those that have been recently obtained.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: It is possible to present additional evidence at later stages of a procedure, as long as they meet the characteristics of "recently obtained evidence," meaning that they could not have been submitted during the initial stage. The presentation of other types of evidence that could have been submitted at the beginning of the process will not be permitted. However, there are prejudicial interpretations issued by the Andean Tribunal that allow for the admission of evidence at later stages to achieve the material truth of the facts. This aspect has been the subject of debate by the competent authorities although there have already been relevant cases where the incorporation of evidence

has been allowed in advanced phases of the procedure.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional. The presentation of evidence in the response is optional and depends on the strategy adopted for defending the mark. The decision to include evidence will be determined by the analysis of the specific situation and the convenience of supporting arguments with additional evidentiary elements, according to the position one wishes to take in the procedure.
- Evidence in reply must be submitted by the following deadline: In actions for relative or absolute nullity, the responding evidence must be presented along with the response document within the two months granted to respond to the demand, or within an additional two-month extension that may be expressly requested. In contrast, for actions for cancellation due to non-use, the evidence must be presented along with the response within 60 days from the notification of the demand, according to the applicable procedure.
- The following extensions of time for the respondent's submissions are available: two months, which only applies in actions for relative or absolute nullity.
- No official fees are payable to obtain extensions. There are no official rates.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence. The petitioner may only present observations on the evidence provided by the opposing party, without the power to request additional details or complementary information. The evaluation of the evidence and observations presented will be carried out by the competent authority, who will apply the criterion of sound criticism to determine its relevance, veracity, and weight in the process, in order to make a fair and well-founded decision.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; evidence of turnover; packaging; labels; price lists; advertisements; written statements; market surveys; use of the mark on the Internet; maintenance of a website; use of the mark on a social media site; other: any other document that proves the use of the trademark. It is important to note that all documents presented as evidence must be notarized and legalized by apostille in the country of origin in order to be valid in the procedure. This formality guarantees the authenticity and reliability of the evidence presented before the competent authority.
- In assessing whether "use has been made," sufficient use is demonstrated by: the most compelling and decisive evidence to prove the use of the trademark consists of commercial invoices and accounting documents that show the commercialization of the trademark in the market, in quantities that are relevant according to the nature of the products or services offered.
- The following factors are considered when determining whether a mark has been sufficiently used: the nature of the goods or services at issue; market characteristics; the scale and frequency of use of the mark; export use.
- The respondent cannot demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence. The defendant has the power to observe the evidence presented by the plaintiff but cannot request additional details or complementary information related to said evidence.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for

cancellation are as follows: The court, other judicial tribunal or administrative body must consider and decide the matter on the merits despite such failure. Once the deadlines established for the presentation of a response have expired, SENAPI has the obligation to issue an administrative resolution that addresses the substance of the process.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: Acquired distinctiveness constitutes valid evidence for the defense of a trademark in absolute nullity proceedings because it is recognized that the sign has achieved a distinctive aptitude in relation to the products or services to which it is applied, thanks to its constant use in the market. This is true, however, only when the nullity is based on genericness, descriptiveness, or common use. To establish acquired distinctiveness, two fundamental criteria are considered: (1) the continuous use of the trademark in the market; and (2) the degree of recognition that consumers have towards the products or services associated with it. These factors are essential to demonstrate that the trademark has achieved an effective identification in the mind of the consumer. To comply with these factors, the defendant must provide evidence that demonstrates constant use and recognition.

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: There are guidelines for marketing, even when it comes to intermittent or seasonal sales, since the vicissitudes, circumstances, and particularities that the commercial phenomenon presents in reality cannot be ignored. Inflationary processes, the introduction of new taxes, unforeseen events, or force majeure can alter the conditions of supply and demand, so the authority must carefully analyze case by case whether the guidelines are justified or not. What is unacceptable is to demand uninterrupted use even if it affects the profitability of the business. In fact, it would be absurd for the businessperson, in order to prove the use of the trademark, to be forced to lose money by offering the product in an adverse scenario. For this reason, it is appropriate for the industrial property authority to adequately weigh the existing factors and, based on a logical, rational, and sound critical assessment, analyze case by case whether the guidelines are justified or not.

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision will not include a formal monetary award against the losing party, regardless of the grounds for cancellation. Cancellation due to non-use, as well as the relative or absolute nullity of a registration, may not under any circumstances contemplate monetary compensation because the decision of the authority is based on due process and procedural equality, in which all parties involved have the same rights and obligations. In this way, the procedure seeks to guarantee equity and justice without incurring financial compensation, focusing exclusively on the analysis of the facts and evidence presented.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is not entitled to recover attorney fees, regardless of the grounds for cancellation. Actions for cancellation due to non-use and absolute or

relative nullity are administrative procedures whose decisions do not entail the imposition of payment of costs and expenses of the process to the parties involved.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid only between the parties to the proceedings, except that the decision will be valid against all third parties if it was brought on the following grounds: absolute grounds. Invalidity based on absolute grounds, such as lack of distinctiveness, may be enforceable against third parties since it is argued that the trademark should never have been registered in the first place. This provision implies that any third party affected by the existence of a non-distinctive trademark has the ability to challenge its validity.
- A decision ordering cancellation of a mark takes effect: The decision ordering the cancellation of a registration due to lack of use takes effect from the moment the resolution becomes final in the administrative process. In contrast, in actions for absolute or relative nullity, the effect is retroactive, since the cancellation of the trademark is considered to be in force from the date it was granted. This means that, when declared null, the trademark is considered as if it had never legally existed, thus affecting the rights and obligations derived from its registration from the beginning.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application if they are based on: absolute grounds (Absolute nullity is intended to protect the legal system, which means that a registration that violates current legal regulations cannot remain in force. Consequently, the withdrawal of the action does not put an end to the process since the authority must continue ex officio until the registration is canceled, as established by Article 172 of Decision 486 of the CAN.); relative grounds (Relative nullity is designed for the protection of a third party, so the withdrawal of this action ends the nullity procedure.); non-use grounds (For cancellations due to non-use, the withdrawal of the application will conclude with the withdrawal of the applicant, given that it is understood that the applicant no longer has an interest in the registration of the trademark that has not been used.).
- Withdrawal of a cancellation application requires the approval of the court, other judicial tribunal or administrative body if the cancellation action is based on: absolute grounds (In absolute nullity procedures, withdrawal of the application is not appropriate due to violation of the law.); relative grounds (In relative nullity procedures, withdrawal is also subject to the acceptance of the authority and the issuance of a corresponding administrative act.); non-use grounds (Withdrawal of a cancellation request due to non-use requires acceptance and issuance of an administrative act by the competent body.).
- Approval of the other party to the proceeding is required for withdrawal of a cancellation application based on: absolute grounds (Withdrawal is not applicable.); relative grounds (Withdrawal of the relative nullity requires the approval of the other party, provided that the other party has been notified of the request.); non-use grounds (Withdrawal of a cancellation request requires the approval of the other party, provided that the other party has been notified of the request.).
- When cancellation applications are withdrawn, the cost of the proceedings is borne by: The costs of each procedure are the responsibility of the parties involved. In the event of withdrawal, the authority will not impose payment of the costs; however, such payment may be agreed upon privately between the parties.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed. Administrative appeals are available against any type of final resolution or administrative act that has an equivalent character, provided that said administrative acts, in the opinion of the interested parties, affect, harm, or may cause harm to their subjective rights or legitimate interests. Final resolutions or administrative acts are understood to be those that have an equivalent character to those administrative acts that put an end to an administrative action. The corresponding appeal against a first instance resolution is called "Appeal for Revocation or Reconsideration."
- Appeals of cancellation decisions must be brought before the following deadline: The appeal for revocation must be filed by the interested party before the administrative authority that issued the contested resolution, within 10 days following its notification.

XIX. Appeals — B. Forum

- The court, other judicial tribunal or administrative body that hears an appeal is determined by the grounds on which the cancellation proceeding was brought. For cancellation proceedings brought on absolute grounds, appeals are heard by the following administrative body: The appeal for reconsideration will be submitted to the same authority that issued the first-instance resolution. However, its review and resolution will be handled by an analyst different from the initial analyst who drafted the first-instance resolution at the Industrial Property Directorate of SENAPI, under the supervision of its director. The purpose of changing the analyst is to ensure a reassessment of the matter without a preestablished opinion on the matter.

XIX. Appeals — C. New Evidence

- New evidence may be submitted on appeal. Article 62 of the Administrative Procedure Law empowers the administrative authority to open a term for evidence, either ex officio or at the request of a party. If it decides to open a new term for evidence in the second instance, it must specify the proceedings that will be carried out and establish that the duration of this period must be 10 working days. This provision ensures that the process remains within the parameters of transparency and clarity regarding the evidentiary elements that will be considered in the decision. In administrative matters, there is a wide discretionary spectrum limited by the norm itself. This means that the exercise of the powers and authorities recognized by the Law to the authority is not unlimited; rather, the same regulation imposes conditions that must be respected. In this regard, if the authority decides to open a term for evidence in the second instance, it must verify that there are new facts or documents that have not been considered in the file. The aim is to avoid the repetition of elements already presented or the inclusion of evidence that could have been submitted at an earlier stage. Therefore, the written appeal and the reports submitted will not be considered new documents, nor will those that the interested party could have attached to the file before the challenged resolution was issued. This rule ensures that the second instance does not become a space for the repetition of evidence but rather focuses on evaluating truly new elements for a fair and substantiated decision.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: The cost of the official fees for submitting an appeal is 100 bolivianos (BOB 100),

which is approximately USD 15.

- Specialist counsel is required for an appeal of a cancellation decision. To refute the determinations of the authority, it is crucial to have a deep understanding of the subject matter. Therefore, having a specialized lawyer is vital to design appropriate strategies and present appeals in a well-founded and technical manner.
- An appeal decision cannot include a monetary award against the losing party if the earlier decision did not include a monetary award. The procedures for cancellation or nullity are of an administrative nature. Similarly, the appellate stage of these procedures is processed through the administrative route. Consequently, under no circumstances can indemnities be imposed on the losing party. Only a judicial procedure can entail the imposition of costs, expenses, and indemnifications, as these elements fall outside the scope of administrative procedures, which are limited to evaluating the validity of the registrations and industrial property rights in question.

XIX. Appeals — E. Scope

- An appeal consists of a complete rehearing of the matter. The appeal for revocation in Bolivia is not limited to a merely legal analysis; rather, it serves as a means to conduct a comprehensive review of the administrative resolution, taking into account both the facts and legal issues. This broad scope allows the authority that issued the initial resolution to re-evaluate all aspects of the case, achieving a correction or modification of the decision that reflects a more accurate and just interpretation of the matter in question, or, failing that, to confirm the resolution.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: Against the second-instance resolution that addresses the appeal (Revocation or Reconsideration Appeal), it is possible to file a further appeal (Second Instance or Higher Appeal). This appeal provides the opportunity for the decision issued in the first instance to be reviewed again by a higher authority, allowing the affected party to present its arguments of disagreement. Such an appeal must be submitted to the Executive General Directorate of the National Intellectual Property Service (SENAPI), which acts as the hierarchical authority within this institution. The Executive General Directorate has the competence to review previously issued decisions and to issue a final resolution that exhausts the administrative route. This last instance constitutes a more thorough review of the contested points, ensuring that the process has been conducted according to the law and that all applicable principles and guarantees related to administrative matters have been respected. Details regarding the deadlines and fees for further appeal are as follows: Against the resolution that resolves the revocation appeal, the interested party or affected party may only file the Second Instance or Higher Appeal. This appeal is presented as a second instance of administrative review, with the aim of having a higher authority reanalyze the case and the arguments presented. This appeal must be filed with the same competent administrative authority that resolved the revocation appeal, within 10 days following the notification of the resolution or from the day the deadline for resolving the revocation appeal expired. Once the Second Instance or Higher Appeal is filed, within three days of its submission, it and its background documentation must be sent to the competent authority for its knowledge and resolution. This forwarding procedure ensures that the higher authority has access to the entire file to evaluate the legality and merits of the first-instance resolution. The competent authority to resolve second-instance or higher appeals will be the highest executive authority of the

corresponding entity or the one designated in accordance with the special regulations for each administrative organization system. This regulation applies to the bodies of the Public Administration covered in Article 2 of the Law, ensuring that the resolution at this level is based on a thorough and hierarchically superior analysis.

- There is no alternative procedure to an appeal. There is no alternative procedure to the appeal. The affected party can only file a Second-Instance Appeal, which is submitted to the corresponding higher hierarchical authority. This appeal seeks to have the highest administrative authority review and reconsider the contested decision, guaranteeing a second instance of analysis within the framework of the administrative procedure.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, regardless of the grounds on which the cancellation proceedings were brought, if an applicant is successful in obtaining cancellation, the legal consequence is that: the mark is considered as if it were never registered. In the procedures for relative or absolute nullity, if the action is successful, the trademark will be considered as if it had never been registered. This is because, in these procedures, the granting of the registration is reviewed based on absolute or relative grounds that demonstrate the lack of compliance with legal requirements from the moment of its granting. the mark is considered as having been validly registered until the date of the decision to cancel the mark. In the cancellation procedures for non-use, the trademark will be considered canceled from the date the cancellation resolution is signed. This is because, in these procedures, the effective use of the trademark is evaluated, which is an essential requirement for its validity, rather than how it was originally granted.
- If an applicant succeeds in obtaining cancellation on grounds other than absolute, relative or non-use grounds: Other: There are no other absolute, relative, or non-use reasons for annulling or canceling a trademark that are not provided for in current regulations.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: Considering that, within the procedures for absolute or relative nullity, a successful resolution nullifies the registration from the date of its granting, the consequences or effects of the assignments associated with that registration are also annulled. This is because such assignments disappear along with the nullity of the trademark and, therefore, have never existed legally. In contrast, in cancellation procedures for non-use, the assignments of the canceled trademark take effect until before the resolution that cancels the registration.
- The consequences for past licenses if a mark is cancelled are: Similarly, for licenses, in absolute or relative nullity procedures, a successful resolution nullifies the registration from the date of its granting; thus, the consequences or effects of the licenses associated with that registration are also annulled. This is because such licenses disappear along with the nullity of the trademark and, therefore, have never existed legally. In contrast, in cancellation procedures for non-use, the licenses of the canceled trademark take effect until before the resolution that cancels the registration.
- The consequences for past contracts if a mark is cancelled are: The same applies to past contracts associated with a trademark: a successful resolution nullifies the

registration from the date of its granting, and the consequences or effects of the contracts associated with that registration are also annulled. This is because such contracts disappear along with the nullity of the trademark and, therefore, have never existed legally. In contrast, in cancellation procedures for non-use, the contracts of the cancelled trademark take effect until before the resolution that cancels the registration.

XXI. Notification to TM Office — A. Notification to TM Office

- The Trademark Office is either a respondent or a third party (non-use) in cancellation proceedings. The court's decision is forwarded to all parties in the proceedings. The Trademark Office (SENAPI) is the authority empowered by law to substantiate and resolve administrative procedures for cancellation due to non-use, as well as absolute or relative nullity. This implies that the decision taken by this authority is immediately executed against the trademark.
- The consequences of failing to meet the deadline to notify the Trademark Office are: There is no notification to SENAPI since this is the entity that issues the resolution.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- There are limitations as to when an application to register the mark can be refiled, depending on the grounds for the cancellation proceedings. There are some limitations to filing a new trademark. In absolute nullity procedures, it will not be possible to apply for a new trademark with the same characteristics since the challenge arises from the violation of the legal system during the granting of the trademark, which persists over time. In the case of relative nullity, if the right of a third party no longer exists, there will be no limitation for filing a new application. In cancellation procedures for non-use, it is possible to file a new trademark since in this process the granting of the trademark is not questioned, but rather its use in the market.
- There are no time limits for refile following the cancellation of a mark. There are no deadlines to reapply for a new trademark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: In Bolivia, which is part of the Andean Community, it is possible to register collective trademarks. Decision 486 of the Andean Community defines this type of trademark as follows: "A collective mark is any sign that serves to distinguish the origin or any other common characteristic of products or services belonging to different companies and that are used under the control of a holder." Therefore, this type of sign is recognized for registration in each member country.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of collective marks. There is no prohibition on cancellation against collective marks. On the contrary, Article 184 of the chapter on "Collective Trademarks" of Decision 486 of the Andean Community establishes that the provisions related to trademarks in this Decision will apply, as appropriate, to this title. Consequently, cancellation actions against this type of mark are permissible.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are

defined as: Yes, it is possible to register "Certification Trademarks" in Bolivia and in the member countries of the Andean Community. Decision 486 of the Andean Community defines this type of mark as follows: "A certification mark is a sign intended to be applied to products or services whose quality or other characteristics have been certified by the holder of the mark." Therefore, this type of sign is recognized for registration in each member country.

- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of certification marks. There is no prohibition on cancellation against certification marks. On the contrary, Article 189 of the chapter on "Certification Trademarks" of Decision 486 of the Andean Community establishes that the provisions related to trademarks in this Decision will apply, as appropriate, to this title. Consequently, cancellation actions against this type of mark are permissible.

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